

25STCV21286 25STCV21286

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 25STCV21286 Hearing Date: August 4, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV21286

EVEL

FLORES vs VMAXX PRODUCTIONS INC., et al.

August

4, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL PRODUCTION OF DOCUMENTS FROM ROBERT SARMIENTO SET ONE; REQUEST FOR SANCTIONS OF \$3,150.

RULING:

The Court grants the unopposed Motion.

On or before August 28, 2026, Defendant ROBERT SARMIENTO shall serve initial responses and produce documents, without objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to the Requests for Production of Documents, Set One, served by Plaintiff EVEL FLORES.

On or before that same date, Defendant ROBERT SARMIENTO shall pay discovery sanctions in the sum of \$3,150.00 to Plaintiff EVEL FLORES, the Court finding the absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

Plaintiff to give notice.

I.
BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered on October 13, 2025.

On January 15, 2026, Plaintiff filed the Motion to Compel Production of Documents, Set One; Request for Sanctions of \$3,150.00, because Defendant failed to respond to discovery served on December 3, 2025.

Defendant has not filed any Opposition.

II.
LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good

cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.)

III.

ANALYSIS

Plaintiff maintains that Defendant has not responded to the discovery.

“If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

Here, Plaintiff properly shows service of the discovery request, and Defendant's failure to respond by the deadline. Further, no Opposition has been filed to meet the burden to show substantial justification in avoidance of monetary sanctions.

IV.

CONCLUSION

Accordingly, the Court grants

the Motion, as prayed.